

Memorandum for Record – Limiting Competition at or below the Simplified Acquisition Threshold

1. Contracting Activity: Army Contracting Command, Aberdeen Proving Ground, Natick Division (ACC-APG-NCD), General Greene Ave, Natick, MA 01760

2. Description of Action:

Nature: ☒ New Requirement ☐ Follow-on Requirement

Contract Vehicle: ☒ Purchase Order
☐ Blanket Purchase Agreement (BPA) Number _____
☐ Order/BPA# _____ against FSS Contract # _____
☐ Order # _____ against Multiple Award IDIQ Contract Name or # _____
☐ Order # _____ against a single award IDC Contract # _____
☐ Modification # _____ to existing PO/TO/DO/Call Order # _____

Pricing/Contract Type: ☒ Fixed Price ☐ Time & Materials/Labor Hours ☐
 Cost Reimbursable ☐ Hybrid

Funds: ☐ Operations & Maintenance, Army (OMA) ☒ Other Funds: RDT&E
 FY: 2024

Name of Proposed Contractor(s) and Address:

Harvard Kennedy School
 79 John F. Kennedy Street
 Cambridge, MA 02138

Brand Name Buy: ☐ Yes ☒ No

3. Description of Services or Supplies: The United States Army Combat Capabilities Development Command – Soldier Center (DEVCOM SC) requires a firm fixed price supply contract that provides the Soldier Protection Directorate [REDACTED] the ability to attend the Harvard Kennedy School Senior Executive Fellows (SEF) program. [REDACTED] was competitively selected from a pool of Senior-level Government applicants from across the Department of Army.

For Actions without Options:

Period of Performance: 31 MAR 2025 to 25 APR 2025

Total Value: [REDACTED]

4. Authority:

☒ FAR 13.106-1(b)(1): For purchases not exceeding the simplified acquisition threshold (SAT), only one source reasonably available, urgency, exclusive licensing agreements, brand name, or industrial mobilization.

Or

☐ FAR 8.405-6(a)(1)(i)(B) and 8.405-6(b)(1) Brand Name

☐ FAR 8.405-6(a)(1)(i)(A) Urgency

☐ FAR 8.405-6(a)(1)(i)(B) Only One Source is Capable

☐ FAR 8.405-6(a)(1)(i)(C) Logical Follow-on

Or

☐ FAR 16.505(b)(2)(i)(B) Only One Awardee is Capable

☐ FAR 16.505(a)(4) Brand Name

☐ FAR 16.505(b)(2)(i)(A) Urgency

☐ FAR 16.505(b)(2)(i)(C) Logical Follow-on

☐ FAR 16.505(b)(2)(i)(D) Minimum Guarantee

5. Reasons for Authority Cited:

Harvard Kennedy School Senior Executive Fellows is a professional development program for Senior Leaders to expand their leadership and managerial skills. It's intended for GS-14/GS-15 federal employees and their military/corporate counterparts. This program incorporates the Office of Personnel Management's (OPM) Executive Core Qualifications (ECQs) for Senior Executive Service (SES). There are many government agencies who offer it as part of their SES Candidate Development Programs (CDPs). Students will learn from world-renowned Harvard faculty and practitioners.

Without an award to Harvard Kennedy School, [REDACTED] will be unable to attend the Senior Executive Fellows program. He has already been selected and approved by Army Civilian Career Management Activity (ACCMA) Civilian Human Resources Agency (CHRA). There is no compatible program offered elsewhere. If the contract is not awarded to Harvard Kennedy School and [REDACTED] is unable to attend this session, the Government not fulfill its senior executive development objectives.

6. Publicizing Contract Actions: For FAR Part 13 actions, the public display and synopsis requirements of FAR 5.101 and FAR 5.203 ☐ do not apply due to the \$ threshold, ☒ apply and will be followed, or ☐ do not apply due to an exception at 5.202 _____.

Requirement to post justification in accordance with FAR 8.405-6(b)(3), FAR 13.105(c), or FAR 16.505(a)(4)(iii)(A)

☒ Action is NOT a brand name restriction and is under \$250K, no posting required

☐ Action is a brand name restriction, under \$25K, no posting required

☐ Action is a brand name restriction, over \$25K. It will be redacted and posted with the solicitation.

☐ Action is a brand name restriction over \$25K but will not be posted due to exception:

☐ FAR 6.305(f)

☐ FAR 8.405-6(b)(3)(iii)(A)

☐ FAR 8.405-6(b)(3)(iii)(B)

☐ FAR 8.405-6(b)(3)(iii)(C)

☐ FAR 16.505(a)(4)(iii)(C)

7. Market Research: The ACCMA CHRA offers the Harvard Kennedy School Senior Executive Program as Enterprise Civilian Talent Development (ECTD). This program is offered to Army Senior Leaders who then apply and are competitively selected. The ACCMA CHRA offers a wide range of continuing education programs for civilian and military personnel. Market research was conducted from September to November 2024 before ☒ applied to ACCMA to search the marketplace for Senior Executive programs. No other program meets the Government's requirements.

8. Other Facts: Due to the Fiscal Responsibility Act of 2023, ACCMA training budget has been substantially decremented. The significant reduction has impacted ACCMA's ability to fund some Civilian Training and Leader Development programs. Commands are directed to fund their selectee(s).

9. Technical/Requirements Certification: I certify that the supporting data under my cognizance which are included in the justification are accurate and complete to the best of my knowledge and belief.

Typed Name: ☒

Date: 12 March 2025

Title: ☒

Signature:

10. Contracting Officer Certification/Approval:

I hereby determine that the anticipated cost or price to the Government for this contract action will be fair and reasonable based upon a comparison to prices found in the open market.

I certify that this justification is accurate and complete to the best of my knowledge and belief, and that completing this purchase as a sole source is in the best interest of the Government. Additionally, I approve this justification to limit competition subject to the availability of funds and provided that the services or supplies herein described have otherwise been authorized for acquisition.

Typed Name: BRANDON RIVETT

Date: 12 March 2025

Title: Contracting Officer

Signature:
